

24PSCV00219 24PSCV00219

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-09-16

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Case Number: 24PSCV00219 Hearing Date: September 16, 2026 Dept: O

Tentative Ruling

PLAINTIFFS

ANGELA TAPIAS, BY AND

THROUGH HER GUARDIAN AD LITEM HORTENCIA TAPIAS AND HORTENCIA TAPIAS'

NOTICE OF MOTION AND MOTION FOR RECONSIDERATION OF THE COURT'S

ORDER TO GRANT DEFENDANT COUNTY OF LOS ANGELES' MOTION FOR

SUMMARY JUDGMENT is DENIED; the court requests Defendant file a proposed order.

Background

This is a

negligence/medical malpractice case. Plaintiff Angela Tapias ("Plaintiff" or "minor"), by and through her Guardian ad Litem Hortencia Tapias, and Hortencia Tapias ("mother") (collectively, "Plaintiffs") allege the following against Defendants CARE AMBULANCE SERVICE, INC ("CAS") and FALCK USA (collectively, "Ambulance");[1] LOS

ANGELES COUNTY FIRE DEPARTMENT (the "Fire Department"); COUNTY OF LOS ANGELES (the "County"); EMANATE HEALTH QUEEN OF THE VALLEY HOSPITAL ("Emanate" or "Hospital") (collectively, "Defendants"): On January 23, 2023, Plaintiff, then a 5-year-old, started to have symptoms consistent with an upper respiratory infection. On January 28, 2023, she was diagnosed with pneumonia, but later that day, Plaintiff's mother called 911 as Plaintiff started to have fevers and chills. Neither the Fire Department nor the Ambulance took Plaintiff's body temperature or implemented treatment modalities to lower Plaintiff's body temperature. "As a result of [the minor's] untreated high and sustained fever, [the minor] suffered a brain injury and currently has the intellectual capacity

of a 2-year-old."

On January

22, 2024, Plaintiffs filed suit against Defendants for:

1. Professional Negligence

2. Violation of Government Code section 815.2

3. Negligence

On February

15, 2024, Emanate filed a demurrer as to the 3rd COA (NIED), which the court sustained on 3/28/24 with leave to amend (as the complaint did not allege an injury-producing event).

On May 29,

2024, Plaintiffs filed their first amended complaint (FAC) realleging the same COAs.

On June 12,

2024, Emanate filed its answer.

On June 28,

2024, the County filed its answer.

On August 7,

2024, Defendant FALCK USA ("Falck") filed a demurrer to the FAC.

On September

4, 2024, the court sustained the demurrer with leave to amend for two reasons: (i) improper lumping of defendants Falck and Care and (ii) the mother did not have contemporaneous awareness that fever was causing anoxic brain injury; the injury is not the fever.

On October

18, 2024, Plaintiffs filed their Second Amended Complaint (SAC) reasserting the same COAs against the same Defendants.

On November

15, 2024, the County filed its answer to the SAC.

On November

18, 2024, the Hospital filed its answer to the SAC.

On December

18, 2024, Falck filed a demurrer to the SAC, which the court sustained with leave to amend on 2/13/25.

On January

31, 2025, the Hospital filed a motion for summary judgment, which was unopposed and granted on 4/30/25.

On March 13,

2025, Plaintiffs filed a third amended complaint (3AC).

On

June 25, 2025, the court overruled Falck's demurrer reasoning that "Plaintiffs have amended their complaint to, at this point, allege vicarious liability and Keys, infra, is instructive in that for purposes of a demurrer, Plaintiffs have alleged contemporaneous awareness of the injury (which is not anoxic brain injury but the inability to regulate Baby Tapias' body temperature)."

On

July 24, 2025, Falck and Care filed their respective answers.

On

January 28, 2026, Plaintiff filed an amendment to the complaint indicating that Falck USA, Inc. is the 'true name' of Falck USA.

On March 6, 2026, an MSJ was filed by the County, hereinafter, "Defendant."

On

June 9, 2026, the court held its hearing on the matter and thereafter took the motion under submission.

On June 24, 2026, the court issued its final ruling. As set forth in that order, "Court orders judgment entered on the Amended Complaint (3rd) filed by Hortencia Tapias, et al. on 03/13/2025 as follows: Plaintiff to

take nothing by virtue of the complaint.” (emphasis added.)

On July 7, 2026, the instant motion was filed.

On

July 21, 2026, Plaintiffs filed their motion to tax costs. (The hearing is set for 10/14.)

On

July 31, 2026, Defendant filed an “OPPOSITION TO PLAINTIFFS’ JURISDICTIONALLY BARRED AND PROCEDURALLY DEFECTIVE MOTION FOR RECONSIDERATION.”

On

August 5, 2026, the reply was filed.

On

August 13, 2026, the hearing was held. The court did not post a tentative ruling as the court received a call that the motion would be taken off calendar. During the hearing, Plaintiffs’ counsel explained that was an inadvertent clerical error. The court continued the hearing to review the papers.

On August

12, 2026, Plaintiffs filed a notice that they have appealed the court’s ‘judgment after an order granting a summary judgment motion.’

On

September 9, 2026, the Ambulance Defendant filed their MSJ; the hearing is set for 12/2.

Discussion

Plaintiffs

seek reconsideration of this court’s order granting the COUNTY OF LOS ANGELES’ Motion for Summary Judgment (MSJ) pursuant to Code of Civil Procedure (CCP) §1008. They argue that counsel but after the order learned of the additional professional experience of Dr. Pham (experience in pediatric pre-hospitalization transport, triage, procedures) that would “likely result in the reversal of the court’s decision.” (Motion p. ii.)

However,

as noted in opposition and tacitly conceded in reply, this court cannot reach the merits because it lacks jurisdiction. A grant of summary judgment may be challenged in the trial court before the judgment is entered by way of a motion for reconsideration under C.C.P. 1008(a). (*Mink v. Superior Court* (1992) 2 Cal.App.4th 1338, 1342.) Here, however, the motion for reconsideration was filed after the judgment was entered. "It is well settled that entry of judgment divests the trial court of authority to rule on a motion for reconsideration." (Opp. p. 2, citing *Safeco Ins. Co. v. Architectural Facades Unlimited, Inc.* (2005) 134 Cal.App.4th 1477, 1482.)

After a summary judgment, the methods of attacking the judgment are by a motion for new trial, and appeal. (*Green v. Del-Camp Investments, Inc.* (1961) 193 Cal.App.2d 479, 481; 6 Witkin, Cal.Procedure (3d ed. 1985) Proceedings Without Trial, § 307, p. 601; see also *Jacobs v. Retail Clerks Union, Local No. 1222* (1975) 49 C.A.3d 959, 963; *Passavanti v. Williams* (1990) 225 Cal.App.3d 1602, see 8 Cal. Proc. (6th), Attack on Judgment in Trial Court, § 18 et seq.) And even if the motion is not labeled as such, the court is free to consider a motion regardless of the label put on it by the moving party. (*Graham v. Hansen* (1982) 128 Cal.App.3d 965, 970.) In reply, Plaintiffs do just that. In reply, they request "that the [c]ourt exercise its authority [] to look to the substance of this timely filing, recharacterize the motion as a Motion for New Trial (CCP § 657(7)) and/or Motion to Vacate Judgment (CCP § 663(1))." (Reply p. 5.)

The motion may be based on any available statutory ground for a new trial, such as "newly discovered evidence" or "accident or surprise." (C.C.P. 657.) The motion must be filed within 15 days of the date of the clerk's service of notice of entry of the judgment. (C.C.P. 659.)

However, though in reference to the 1008 motion, as argued by Defendant, "[t]here is absolutely no evidence that any of Dr. Pham's foundational background could not have been timely presented to the Court sooner and/or why they were only supplied to the Court after the ruling granting Defendant's MSJ." (Opp. p. 3:24-26.) After all, Plaintiffs were in possession of Defendant's MSJ since March 11, 2026. In fact, Plaintiffs were aware of Defendant's evidentiary objections to their experts filed on 5/29 such that Plaintiffs since then had the opportunity to revisit their experts' credentials before the 6/9 hearing. Of note, this court does not post tentative rulings on summary judgments generally until one day before the hearing meaning Plaintiffs had a handful of days to re-evaluate their expert's credentials. But they did not until after the

ruling when Dr. Pham and Plaintiffs' counsel were discussing the ruling.

(Motion pp. 5-6.) To the extent that Plaintiffs argue "they no reason to believe the Court intended to strike Dr. Pham's testimony in toto" because of the tentative ruling, a tentative ruling is just that—tentative, not a final.

(Reply p. 3.)

As for

Plaintiffs' request to vacate the judgment, that can be made on the grounds of an "Incorrect or erroneous legal basis for the decision, not consistent with or not supported by the facts...." or

a "judgment or decree not consistent with or not supported by the special verdict." Plaintiffs have not explained how the court made a decision based upon incorrect or erroneous law.

The court

recognizes that the reply puts Defendant at a disadvantage since new theories of relief are being asserted. Should Defendant ask for it, the court will continue the matter for supplemental briefing.

Conclusion

Based on

the foregoing, the motion is denied.

[1] According to the

complaint, Falck USA is the parent company of the Ambulance.